

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 21, 2026
8:30 AM/1:30 PM

4. LISA PURVES V. SCOTT PURVES

PFL20010383

On November 17, 2025, Petitioner filed a Request for Order (RFO) seeking division of the pension plan. Given that this is a post-judgment request, the RFO and all other required documents were personally served on December 26th, however, the original Proof of Service states that service was on December 26, 2026, not December 26, 2025. Respondent has not filed a Responsive Declaration to Request for Order. Petitioner was ordered to correct the Proof of Service and the matter was continued to the present date.

A corrected Proof of Service was filed on March 10, 2026, indicating personal service of all required documents on December 16, 2025.

On May 12, 2025, Petitioner filed a Supplemental Declaration and a Declaration of Callie B. Cambridge in Support of Petitioner's Request for Attorney Fees and Costs. Both documents were mail served on May 12th.

Petitioner is requesting equal division of community interest in Respondent's Operating Engineers Pension Plan (OE3) at shared costs. She further requests attorney's fees and costs pursuant to Family Code § 2556, 2032, and Civil Procedure § 128.5.

Respondent filed a Responsive Declaration to Request for Order on May 15, 2026. It was not served until May 18th. The court finds this to be late filed pursuant to Civil Procedure section 1005(b) which states all opposition papers are to be filed at least nine court days before the hearing date. Section 12c states, "[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12." Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made May 8th the last day for filing of the responsive declaration therefore, it is late filed and has not been read or considered by the court.

A joinder for the pension plan has been filed but it does not appear that the Summons and joinder documents have been served.

Petitioner's request for equal division of the OE3 pension plan is granted. The parties are ordered to equally share in the costs of preparing the QDRO. Respondent is ordered to provide all necessary information to facilitate the preparation of the QDRO no later than June 21, 2026.

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Petitioner's request for attorney's fees pursuant to Family Code § 2032 is denied due to her failure to file an Income and Expense Declaration. In the face of a request for attorney's fees and costs under Family Code § 2030 and 2032, the court is to make findings on "whether there is a disparity in access to funds to retain counsel, and whether one party is able to pay for legal representation of both parties." Fam. Code § 2030(a)(2). Without the filing of an Income and Expense Declaration by the moving party the court is unable to make the requisite findings and therefore the request is denied.

The request for sanctions pursuant to Civil Procedure § 128.5 is likewise denied as it is procedurally improper. A motion for sanctions under § 128.5 "...shall be made separately from other motions or requests and shall describe the specific alleged action or tactic, made in bad faith, that is frivolous or solely intended to cause unnecessary delay." Cal. Civ. Pro. § 128.5(f)(1)(A).

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #4: PETITIONER'S REQUEST FOR EQUAL DIVISION OF THE OE3 PENSION PLAN IS GRANTED. THE PARTIES ARE ORDERED TO EQUALLY SHARE IN THE COSTS OF PREPARING THE QDRO. RESPONDENT IS ORDERED TO PROVIDE ALL NECESSARY INFORMATION TO FACILITATE THE PREPARATION OF THE QDRO NO LATER THAN JUNE 21, 2026. THE REQUEST FOR SANCTIONS PURSUANT TO CIVIL PROCEDURE § 128.5 IS LIKEWISE DENIED AS IT IS PROCEDURALLY IMPROPER.

PETITIONER'S REQUEST FOR ATTORNEY'S FEES PURSUANT TO FAMILY CODE § 2032 IS DENIED DUE TO HER FAILURE TO FILE AN INCOME AND EXPENSE DECLARATION.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF

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A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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5. LISA RENNER V. CHRISTOPHER RENNER

PFL20210613

On February 24, 2026, Respondent filed a Request for Order (RFO) seeking child custody and school orders. The RFO was mail served on March 2nd. Because this is a post-judgment request, Petitioner filed a Declaration Regarding Address Verification as required by Family Code § 215. It appears Respondent failed to serve the Notice of Tentative Ruling and the blank FL-320.

Petitioner filed a Responsive Declaration to Request for Order on March 18th. It was personally served on April 10th.

Respondent also filed a Responsive Declaration to Request for Order, though it unclear why as he is the moving party. The court deems this to be a reply declaration. It was served on April 2nd.

The parties attended Child Custody Recommending Counseling (CCRC) on March 26, 2026. They were able to reach one agreement. A report containing that agreement and additional recommendations was prepared; it was mailed to the parties on April 3, 2026.

On May 11th, Petitioner filed a reply declaration. The court deems this to be a supplemental declaration in response to the CCRC report. There is no Proof of Service for this document therefore, the court has not read or considered it.

On May 14th, Respondent filed and served another Responsive Declaration to Request for Order. The court deems this to be a supplemental declaration in response to the CCRC report.

Respondent is requesting the following orders: (1) Neither parent shall enroll or transfer either minor child to a different school without the mutual written consent of the other parent; (2) The minor Caide to remain enrolled in Lakeview Elementary School pending further order of the court; (3) The court shall determine middle school placement for Jace for the 2026-2027 academic year; and (4) All existing custody and parenting time orders to remain in full force and effect.

Petitioner asks the court to determine the middle school placement for Jace only.

After reviewing the filings as outlined above the court finds the agreements and recommendations contained in the April 3, 2026 CCRC report to be in the best interests of the children and they are hereby adopted as the orders of the court.